

		<i>City of Fresno</i> (1984) 151 Cal.App.3d 635, 647.) Nor have Defendants presented sufficient evidence to suggest that any requested relief is warranted here in any event. The Motion is therefore DENIED. <i>The clerk is to give notice of this ruling.</i>
9.	Wong v. SBS Trust Deed Network 23-1343409	(Moot)
10.	Victory Live, Inc. V. Kai Sports and Entertainment Corp. 25-1512515	Before the Court is motion for an order setting a default prove-up hearing filed by plaintiff Victory Live, Inc. (Plaintiff). For the reasons set forth below, the motion is GRANTED. Plaintiff's request for judicial notice is GRANTED. (<i>Evid. Code</i> § 452, <i>subd. (d)</i>.) Entry of default judgment by the court clerk is authorized only if the action is one "arising upon [a] contract or judgment"; seeks recovery of "money or damages only" in a fixed or determinable amount; and the defendant was not served by publication. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (a)</i>.) In all other cases, a default judgment can be granted only by the judge upon an evidentiary showing. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (b)</i>.) A court judgment is also required where plaintiff seeks "reasonable" attorney fees, <i>i.e.</i>, where the plaintiff wants more than the scheduled fee pursuant to local rule. In such cases, the court clerk has no power to determine the amount and a court judgment is required. (<i>Landwehr v. Gillette</i> (1917) 174 Cal. 654, 657-658.) Here, the defaulted defendants were personally served, and Plaintiff's complaint is an action arising out of an express contract seeking the recovery of money damages in the fixed amount of \$293,691.63. However, Plaintiff seeks reasonable attorney fees in an amount more than allowed by the attorney fee schedule under <i>Local Rule 366</i>. (Compl. at p. 12:5; ROA 45; RJN, Exs. 2 at ¶ 14, Ex. 3 at ¶ 2.) Thus, a court judgment upon evidentiary showing is required. The motion is therefore GRANTED. The Court sets the default prove-up hearing for a date and time to be determined at the hearing in Department C20. Plaintiff shall file and serve a notice of the hearing and re-serve the prior default packet and/or any other required documents pursuant to <i>California Rules of Court</i>, rule 3.1300. <i>Counsel for Plaintiff shall give notice of this ruling.</i>
11.	Pruthi v. Spinnaker Insurance Company 26-1550156	The demurrer of defendant Hippo Analytics, Inc. (Hippo) directed to the complaint of plaintiffs Akhil Pruthi and Indu Pruthi (collectively, Plaintiffs) is OVERRULED. Hippo shall file an answer to the complaint within 20 days. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311,